

23NWCV02107 23NWCV02107

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-04

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Case Number: 23NWCV02107 Hearing Date: August 4, 2026 Dept: P

STATE FARM GENERAL

INSURANCE COMPANY v. LENOVO (UNITED STATES) INC.

CASE NO.: 23NWCV02107

HEARING: 08/04/2026 @ 10:30 AM

#12

TENTATIVE ORDER

Cross-Defendant LG Energy Solution, LTD's motion for summary judgment is OFF-CALENDAR.

Moving party to give notice.

Cross-Defendant LG Energy Solution, LTD (Cross-Defendant or LGES) moves for summary judgment as to the complaint.

Background

On July 7, 2023, Plaintiff State Farm General Insurance Company (Plaintiff) filed a subrogation complaint for damages against Defendant Lenovo (United States) Inc. (Lenovo) and Does 1 through 20. This action arises out of a fire at 5723 Castana Avenue, Lakewood, California 90712 (Subject Property), owned by Plaintiff's Insureds, Kurt and Danielle Zielinski. (Complaint, ¶ 6.) The complaint alleges that on "August 4, 2020, as a result of the improper and illegal acts or omissions to act by [Lenovo and Does 1-20]...a fire loss occurred

("fire loss incident")...within the attached garage of the subject property, when the Mr. Zielinski's laptop's ("subject laptop) (Lenovo Thinkpad P51, Serial No. R90QF1YU) four (4) 18650 lithium batteries (subject lithium batteries") manufactured, designed, distributed, inspected, supplied, serviced, sold, installed and/or repaired by [Lenovo and Does 1-20], failed, a fire ensued, spread quickly and resulted in extensive damage." (Complaint, ¶ 7.) The complaint asserts two causes of action: (1) negligence and (2) strict products liability.

On September 21, 2023, Lenovo filed a cross-complaint against Cross-Defendants LG Chem, LTD, LGES, and Roes 1-100. The cross-complaint asserts five causes of action: (1) express indemnity, (2) breach of contract, (3) equitable indemnity, (4) equitable contribution, and (5) declaratory relief.

On December 28, 2023, Lenovo filed two Requests for Dismissals, dismissing (1) the second through fifth causes of action as to LGES and (2) the cross-complaint as to LG Chem, LTD.

Discussion

Cross-Defendant brings this motion for summary judgment against Plaintiff as to the complaint. As far as the record shows, Cross-Defendant is not a party to the complaint. Cross-Defendant is a party to Lenovo's cross-complaint for express indemnity. The Court is not aware of any authority, and Cross-Defendant does not put forth any authority, conferring standing on a non-party to a complaint to summarily move for judgment as to a pleading that it is not a party to.

This issue is emphasized by Cross-Defendant's chief arguments: "State Farm Does Not Have a Viable Negligence Claim Against LGES" and Plaintiff's "strict products liability claim against LGES must fail as a matter of law." (Mot., 7:4, 14:15.) Based on the record, Plaintiff does not assert a negligence claim or strict liability claim against Cross-Defendant and, therefore, the issue of proving that Plaintiff cannot establish a negligence or strict liability claim against Cross-Defendant is not even before the Court.

The pleadings serve as the "outer measure of materiality" in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258.) As no claims of negligence or strict liability

against Cross-Defendant are alleged in the subject pleading, the Court cannot grant or deny this motion on the grounds raised here.

Accordingly, Cross-Defendant's motion for summary judgment is OFF-CALENDAR.